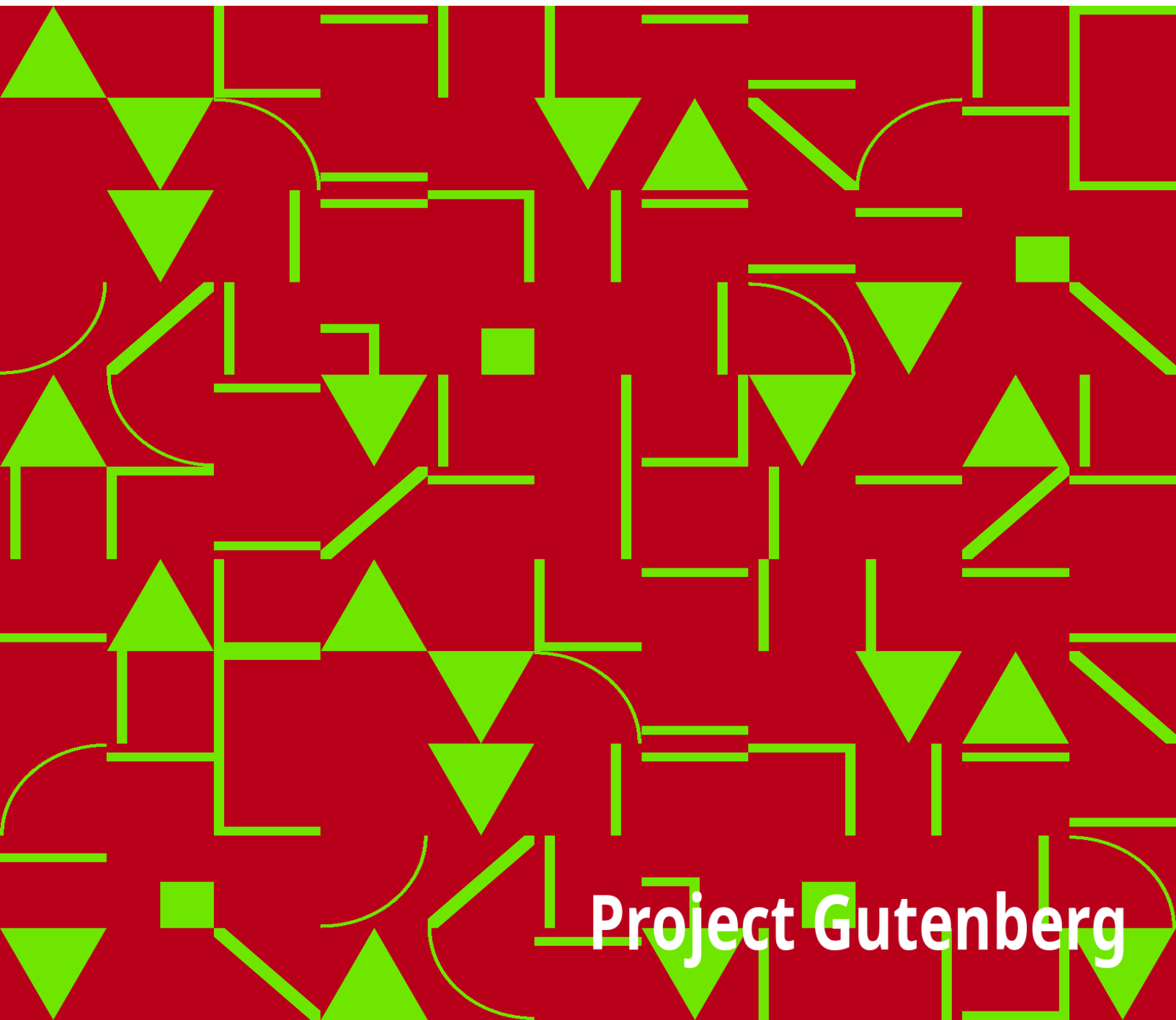


A Letter to Sir Samuel Shepherd, Knt., His Majesty's Attorney General

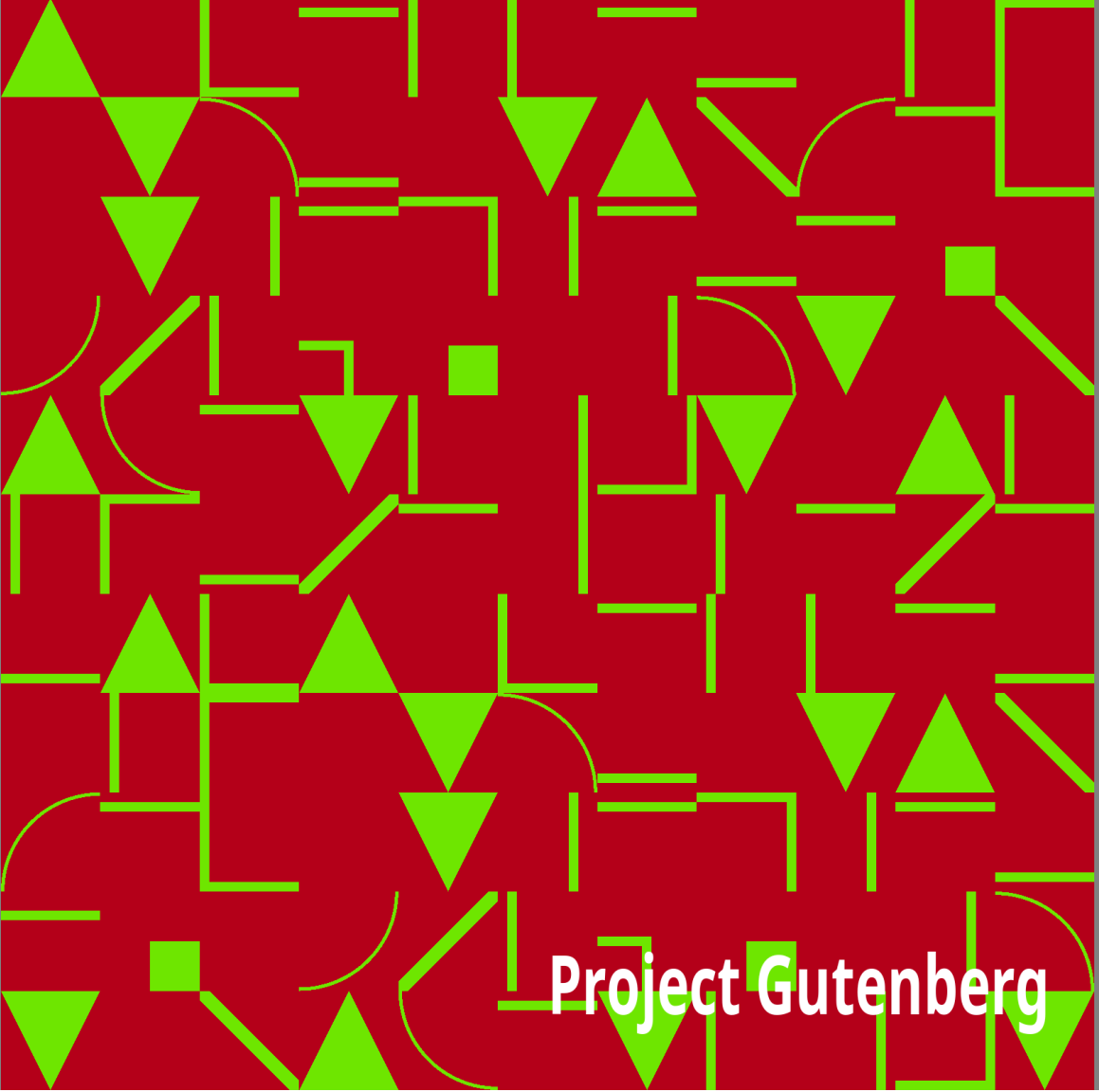
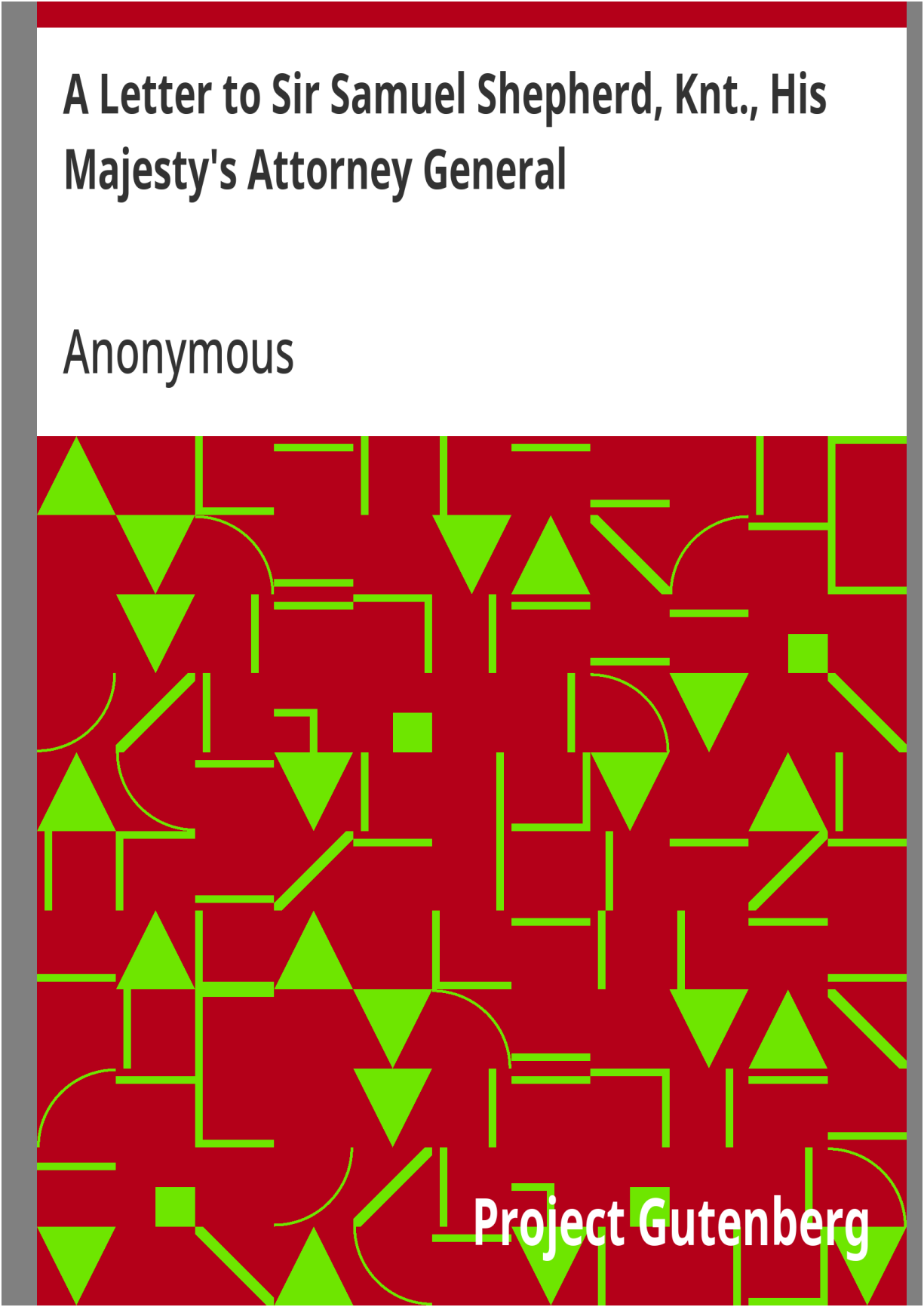
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*** START OF THE PROJECT GUTENBERG EBOOK A LETTER TO
SIR SAMUEL SHEPHERD, KNT., HIS MAJESTY'S ATTORNEY
GENERAL ***

LETTER

TO SIR SAMUEL SHEPHERD, KNT. HIS MAJESTY'S ATTORNEY-GENERAL UPON THE SUBJECT OF HIS PROSECUTIONS OF RICHARD CARLILE, FOR PUBLISHING PAINE'S AGE OF REASON. LONDON. PRINTED AND PUBLISHED BY R. CARLILE, 55, FLEET STREET.

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LETTER TO SIR SAMUEL SHEPHERD, KNT.

Sir,

As you have commenced the prosecution of Carlile, a printer, for publishing an edition of Paine's Age of Reason, in conjunction with the self-styled Society for the Suppression of Vice, I take the liberty to submit to your consideration a few remarks, upon the nature and tendency of this purposed suit. Since prosecutions of this kind are not novel, and as it may be fairly conjectured that you will follow the ordinary routine of men in your office in these causes, and moreover as the accused will be subjected to the usual disadvantage of meeting three pleadings to the one which will be allowed him, besides the probable interruptions from the Judge on the bench, I think it needful and reasonable to anticipate and meet beforehand those hacknied arguments, which it seems to me most probable that you will advance in the court on the days of trial.

That the accuser should be permitted to plead three times to the once with which the accused is but imperfectly indulged, though it may be law, is most flagrant injustice. But, perhaps, you may not be quite satisfied with my arithmetic, and may ask me, how I make out my three pleadings to one. It were much to the honour of this country, and its laws, if I should be mistaken in my calculation, but I fear to be put to the blush as an Englishman, (if you serjeants at law are not,) by my computation, being found to be but too true.

In the first place, you open the case. This you do not reckon pleading: but as you are allowed to say whatever you think proper, it becomes as truly a pleading in reality as your latter speech, which alone you call by that name. The second is what is styled so on both sides. And this would be injustice, if I stopped here; but having engaged to reckon up three pleadings, I fix upon the most unfit person that could be named; that is, my Lord Judge, to plead on the third occasion.

This speech of the Judge, you crown-lawyers term summing up the evidence; but I believe you can never adduce one solitary instance in a

crown prosecution, in which the Judge has not acted completely the part of a retained counsel for the crown.

That my Lord Judge should be unable to divest himself of the habit of pleading as an advocate, since he has formerly followed that employment, though far from equitable or decorous, is still very natural, like as the mail-coach horse which has aforetime been a hunter,

"When hounds and horns the forest rend,"

pricks up his ears, and longs to join in the pursuit. But the Judge also discharges a still more exceptionable office, that of interrupter on the part of the crown.

He is apt to lug in his observation, that what the accused is saying in his own defence is *irrelevant* to the question; though a man's penetration must be astonishing who can determine beforehand that any particular sentence uttered shall not, by a concatenation of argument, be brought to bear forcibly upon the point in question.

If the accused adduces instances of opposite decisions in similar proceeding suits, with a view to point out an inconsistency, the Judge will exclaim, "That is not the cause before us;" though how in the world can inconsistency be shewn without bringing forward more than one particular?

These ill-timed interruptions, by breaking the thread of connection of the defence of the accused, must so maul it, and put it out of shape, that the jury become unable to make either head or tail of it, even though it should have been previously drawn up with good judgement, and contain the soundest reasonings.

In trials for alledged blasphemy, if the accused complains that a garbled extract made from his book does not convey its true sense, and wishes to read it at large, the court object, and cry out, that the book is too bad to be read in that place, and that it will poison the ears of the audience.

If the accused desires that the Bible may be referred to, in proof of its contradictions or blameable passages, the court bawls aloud that it is too good a book to be produced before the profane. If reference be thus objected to, by what means, then, shall the truth be brought to light?

And now, Mr. Attorney-General, let us proceed to your own probable allegations and arguments in court in this particular cause; and I will

suppose you to say to the gentlemen of the jury, that you have been urged by the representations of a respectable body of men, the Society for the Suppression of Vice, to prosecute R. Carlile, whom you have discovered and proved before the court to have gone *vi et armis*, by violence and with weapons of war, and not having the fear of God before his eyes, to have published a blasphemous libel, the Age of Reason, by Thomas Paine, which libel had been previously condemned by a Jury, and burnt by the common hangman. That the wicked tendency of this libel was to induce a general disbelief of your and their most holy religion, that pure, pacific, and benevolent system, which, having emanated from the Deity, is, to its adherents, the basis of their comforts in this life, their solace in the hours of affliction, sickness, and death, their moral instruction in this world, and their providitor of everlasting happiness in a world to come; that libels of this impious description were with a malignant zeal thrown in the way of the young and inexperienced, too undiscerning to detect their sophistry, or suspect the poison contained in them, and too ignorant yet of the world to be on their guard against the practices of bad men: that irreligion and; immorality are necessarily connected; and that the propagators of infidelity are actuated by a malice too virulent to be attributed to mere human passion, and for which a motive and stimulus would be in vain sought for, unless it be assigned to the instigators of the great enemy of mankind, the Devil. The jury will be conjured, as they value the preservation of good morals, the peace and good order of society, both individual and public welfare, the happiness of their fellow-subjects both in this world and in a future life, to arrest the fatal poison in its progress, and give a verdict of conviction and condemnation against the accused.

But, Mr. Attorney General, you would not take shining pinchbeck counters instead of sovereigns for a fee, with as little close examination as you will wish the jury to admit the weight and validity of your arguments, and the accuracy of your assertions.

The imposing name assumed by the Society who are the ostensible movers of the prosecution, might, at the first glance, seem sufficient to carry all before it, and to dispatch the business at one blow. For what could such a Society direct their efforts, against but vice? However, men are not to be judged of by the titles they choose to give to themselves, without some scrutiny being made into their conduct. This self styled Society for the Suppression of Vice, exhibit themselves to us as the foes to free inquiry, and

stifling the arguments on one side of a question. In vain will they excuse themselves as preventing the poisonous effects of reasonings on the wrong side; for to decide in that way which side is wrong is a *petitio propositi*, a begging of the question. Real truth is best established by the free production of the arguments on both sides; for thereby suspicion of unfairness is removed. So many absurdities attend upon error and falsehood, that truth has a very preponderating advantage against them, where enquiry is left free. The arguments then adduced on the wrong side of a question, are not so noxious and poisonous as disingenuous men wish to insinuate. The truth abhors to be indebted to suppression of argument, from that it never can derive advantage; therefore it is only resorted to by the party who are in the wrong. This endeavour to suppress argument implies disingenuousness, and this last named quality is always at variance with real truth. Error may be designed, but disingenuousness never can be; and, therefore, when accompanied with violence, it is always criminal. Disingenuousness, as far as it extends, cannot consist with the love of truth, but error may. Now as the love of truth is the basis of all real morality, this disingenuous self-styled Society for the Suppression of Vice, are, therefore, detected to be a Society for the Suppression of Virtue.

I will still suppose you to proceed in the beaten, track of your predecessors in office, and omitting to reply to the technicality *vi et armis*, on which, I imagine, you lay no stress, I take the liberty to question the propriety of the accustomed phrase, "not having the fear of God before his eyes." You will admit, Mr. Attorney-General, that to forge the Great Seal of England would be a criminal deception, and also, that to examine whether it was forged or not, or to state reasons for believing it to have been forged, would be allowable. Now, as the authority of the Creator is a higher one than the British Government, so to forge a revelation from him would be a more criminal imposture than the former one; and a rigid examination and scrutiny into its truth or falsehood, and all doubts and rational exceptions against a supposed revelation, would always be innocent, and might sometimes be laudable. Therefore, as Paine's Age of Reason is an objection against the truth of the supposed revelations of Moses and Jesus, the conduct of R. Carlile in publishing it must be innocent, at least, if not meritorious, and therefore would consist well with a pious veneration towards the Supreme Being; and this invalidates your assertion.

"Which libel had been condemned by the legislature." But as the legislature is composed of fallible men, their sanction does not prove the truth and validity of Jesus's pretensions; and as the conduct of the legislature in sanctioning this revelation might be directed and influenced by political motives, their sanction is an argument rather against than in favour of its truth.

"And burnt by the common hangman." Jean Jaques Rousseau says, and so must every reasonable man, *Bruler un livre n'est pas y repondre*, "Burning a book is not answering it."

"The wicked tendency of this libel was to induce a general disbelief of your and their most holy religion." The truth can only be ascertained by leaving inquiry free, that arguments on both, sides of a question may be brought forward, in order that it may be seen on which side the preponderance lies. Therefore, the same objection would hold good against producing the arguments on the wrong side of any other question, as well as this before us now; this would militate against truth in general, and is, of course, absurd. Besides, as the Deists have made the offer to argue with Jesus's followers upon the truth or falsehood of Jesus's pretensions upon fair and equal terms, which offer Jesus's followers have thought proper to divine, therefore, to use a figure borrowed from pugilistic combats, the Deists throw up the hat and claim the victory.

"That pure, pacific, and benevolent system, which having emanated from the Deity." But the Deists offer to bring arguments to disprove the purity, peaceableness, and benevolence of Jesus's system, and likewise its origin from the Supreme Being; and your laws hinder those arguments from appearing. Now, this endeavour of yours to suppress is concealment. And if there is nothing criminal in this system of Jesus, what could you have to conceal? The Deists do not endeavour to conceal any thing, it is the hiding, hushing, concealing party which are the guilty; where morality is concerned concealment implies guilt. If the Deists venture to bring forward demonstrations from the four Gospels against the personal moral character of Jesus, you call that blasphemy. But recollect, that when the Deists make you the offer to discuss the moral character and the pretensions of Jesus to a mission from the Almighty upon honourable and fair terms, and you choose to decline this equitable proposal, the charge of blasphemy falls upon yourselves; your sneaking evasion and concealment cause the charge of

blasphemy to be brought home against you, and you stand convicted yourselves as the blasphemers.

"Is to its adherents the basis of their comforts in this life." Observe, that those very men who lay heavy taxation upon this country, and, what was unknown to Pagan times, entail those taxes upon unborn children, those men are among the most zealous asserters of Jesus's pretensions, and employ Jesus's priests as diligent advocates for the imposition of public burdens on the land, and sundry abuses. So that the bulk of the people of this country are not much indebted to Jesus's system for temporal comforts. Nay, it rather deprives them of many comforts, and even necessities in this life. We have such men at present in office, of greatest power and trust, who are of such principles that they would countenance and patronize no religion but what suited their purpose, and promoted their tyranny and oppressive objects and designs. Therefore, we may see what Jesus's religion is by its suiting them so well.

"Their solace in the hours of affliction, sickness, and death." Jesus's religion has caused the affliction and death of far more people than it has solaced on such occasions.

"Their moral instructor in this world." The real moral tendency of Jesus's system is one of the points at issue between his followers and the Deists; therefore that position is not to be assumed as it has not been fairly proved. The effect of Jesus's religion may have been to repress some vices in the world, but it has greatly increased others. When the Pagan Romans possessed Britain, there was not as much gin, brandy, and whiskey drank here as there is now. Nay, the Pagan Romans used to mix water with their wine most usually. Unpaid Bank notes were unknown to them; and thus millions of inhabitants were not employed in circulating among themselves falsehood and fraud, which horrid practice among us renders those two last crimes familiar to the view, and abates the abhorrence of them. Indeed, perjury was evidently not near so frequent among the Pagan Romans as it is now that Jesus's system has prevailed; this fact we can clearly infer from what remains to us of Greek and Roman writers. The unnatural tax on unborn children was totally unknown to those ancients: so that Jesus's morality has not done us much good.

"And their providitor of everlasting happiness in a world to come." There are some drawbacks in this world, at any rate, if we reckon the Sunday's

weekly gloom, and the tythes on all landed property. Whether this future happiness be attained to at last or not by Jesus's followers, it is a long, a very melancholy road, however, that they go to it. And as a tenth levied on all landed produce and other church dues are pretty large, payment in advance for an inheritance in an unseen country, which no man living has visited, it seems unreasonable for the law to hinder a scrutiny and examination into the validity of the title-deeds. Besides, as the land is rated heavier than other property, the payment falls very unequally on the holders of shares in this *Terra Incognita*.

"Libels of this impious description are zealously thrown in the way of the young and inexperienced." This practising upon the minds of the young and inexperienced, if it be culpable, is not so chargeable upon the Deists as upon Jesus's priests. The deistical writings are argumentative, and therefore cannot be read by the young till they are almost grown up, and the judgement is always appealed to by the Deists; neither do they discourage the examination of the other side of the question, as Jesus's followers usually do. On the other hand, Jesus's priests burden the memory of children, not seven years old, with creeds and catechisms; besides, they labour to prejudice the young in favour of Jesus's system, and to discourage all fair inquiry into what concerns its truth; a conduct which the Deists would abhor to pursue in favour of deism. Moreover, the catechisms and other machinations of Jesus's priests are calculated to impair the discerning faculty of the young, and to blunt its acumen.

Let us examine the beginning of the church of England catechism as an example. "Q. Who gave you that name?"—"A. My godfathers and godmothers in my baptism, wherein I was made a member of Christ," &c. How should a child at seven years comprehend the meaning of a membership with an unseen metaphysical being? This beginning with children on subjects beyond their comprehension is playing tricks with their understanding.

"Q. What did your godfathers, &c. then for you?"

"A. They did promise and vow three things in my name: first, that I should renounce the devil and all his works." It is a monstrous proposition to instil into a child's mind that one person could swear to the certainty of another's conduct. Surely these priestly tricks must be meant to incapacitate these young children throughout life from thinking ever acutely on religious

subjects. And what idea could a child have of the devil's works? Of the devil himself they might form some notion from the picture of him, and might

"Dream of the devil, and wake in a fright."

The processions [i. e. poms] and empty things of this wicked world. Would any pious man swear that a child should not be fond of processions, poms, and splendid shows? Neither could a child distinguish empty things or vanities of the world. It is unavailing for Jesus's priests to say that at any age of maturity these distinctions will be comprehended, for they have taken care before hand, as far as they could, to injure and debilitate the discerning faculty: and if they should afterwards distinguish vanities, they would still be less able to examine religious truths; and to place impediments in the way of this last, is the priest's object. "Secondly, that I should believe all the articles of the Christian faith." How can one person swear, to what another shall believe? and what a notion this swearing must give to young minds of the reverence due to an oath! Descant, Mr. Attorney-General, as you think proper upon the good moral tendency of the religion as by law established, but you will find it very difficult to prove your assertions in its favour, whenever you may please to advance them. The oath extends so far as that the child shall believe not one article only but all the articles of Jesus's religion, and that without even comprehending them all, for some, as that of the Trinity, are quite unintelligible; and some of these articles contain other articles so as to embrace the whole volume of the Bible, all and singular every passage of it.

"And thirdly, that I should keep God's holy will and commandments." Then they must swear that the boy shall never be a godfather.

All this is done to impair the intellect, and accounts, in part, for the extreme obstinacy and prejudice of Jesus's followers. Somebody must have sworn, Mr. Attorney General, that you should never be an Attorney-General; for this exercise of your office herein described, is not compatible with much scrupulosity. As for its being said that the child afterwards takes the oath upon itself, oaths cannot be so transferred; therefore that plea is futile. No description of people, besides Jesus's followers, ever admitted the execrable principle of the transfer of an oath. In fact, if the godfathers had sworn that the boy should turn out a pickle, after all the rest of priestly

management, they would have stood a pretty good chance of having nothing fall upon their conscience from that quarter.

Jesus's priests are apt to injure the intellect of young people by telling them, that if they do not believe Jesus's religion they will be damned to eternal punishments. Now as in all natural belief, when the intellect is sound and healthy, the mind is always passive in the act of giving its assent to any proposition, this trick of Jesus's priests disturbs, impairs, and disorders the understanding; and by this means also people are rendered incapable, throughout life, to reason and inquire with penetration, discernment, and impartiality on religious subjects. The natural belief of a sound mind is not determined by the will. If men could, in all cases, believe whatever they pleased, their minds would be a complete chaos; yet have Jesus's priests, in all ages since the days of the founder of their religion, offered this violence to the human intellect. Thus, I think, that I have shewn you, Mr. Attorney-General, that the young and inexperienced are not more in danger of imbibing absurd notions and depraved principles from the Deists than from Jesus's priests.

I now proceed to examine a supposed assertion, rife enough among those of your side of the question that "infidelity and immorality are necessarily connected." That the Deists and other unbelievers are more immoral than Jesus's followers, is more than can be proved. And when we consider that Jesus's religion is always taken up as a prejudice, and is maintained in the world by violence, and by a pertinacious determination of Jesus's adherents to hear the reasons only on one side of the question, that side which is favourable to his pretensions, a procedure which is utterly repugnant to the love of truth, the most probable conjecture is, that the unbelievers should be, upon the whole, the more moral party. But it must be allowed to be a difficult matter to determine such a question as that to any thing like certainty. Until it be determined, however, you have no right to make the assertion alluded to.

When you declaim upon the too great prevalence of infidelity, you speak a language which implies the insane and monstrous notion that natural belief is dependent upon the will; whereas it is the known and suggested reasons which always naturally determine the assent. A man is no more culpable merely for what he believes, than he is for discovering by the taste that sugar is sweet and aloes bitter. Your slang when you speak of infidelity

and belief, as virtues or vices, reprehensible or laudable, would be quite unintelligible to us, if we were not already acquainted with the tricks and machinations of priests to create prejudice, or frighten people into an assent to points, which they dare not trust and submit to the test of fair inquiry.

If the Creator were to require an assent without a sufficient reason to determine it, he would demand what is contrary to the structure of the human mind, which was formed by himself: thus he would disorder his own work, which is a thing incredible. If he has suggested reasons which would not have been otherwise thought of, let Jesus's priests produce them, and let them be examined. Then the prosecutions of Deists would be superfluous, for they would be forced to: believe when the reasons were found cogent enough. But no such reasons have been hitherto produced: reason or no reason, the assent is still required. And how shall such an assent without reasons sufficient be distinguished from what is universally allowed, by physicians and all others, to be insanity and mental derangement?

"That the propagators of infidelity are instigated by the Devil." This assertion, very usual from men in your office, Mr. Attorney-General, you are unable to prove. And hereby you remind us, that Jesus's followers universally admit the very absurd notion of two principles in the universe, a good and a bad one.

I know that the moderns being ashamed of it, wish to abrogate it, and to throw it off from themselves upon the early heretics. But we shall not allow you to escape that way. If you advance any principle, you must admit all the consequences which necessarily flow from it; and we will not suffer your evasions in this particular. When pressed hard, you followers of Jesus want to pass off the Devil upon us for a mere angel, and tell us of his war in Heaven, and that he was cast out upon the earth. This will not do, we shall not allow you this subterfuge, for in other places your received canon of Scripture maintains the ubiquity of the Devil; this extravagant notion with which we charge you, we shall bring home to you. In 2 Cor. chap. iv. ver. 4, you have, "In whom the God of this world hath blinded the eyes of them that believe not." implying, that the Devil, i. e. the God of this world, is present in all unbelievers. This is still further confirmed by 1 John chap. v. ver. 19, "The whole world lieth in the wicked one," i.e. the Devil. I know that it is translated, "lieth in wickedness." But this is a sneaking evasion of Jesus's followers, who are ashamed of the notion of the two principles. That

is an extraordinary vicious translation of the passage. A man who knows the least of Greek at all must be sensible that the passage will only admit of the rendering which I have here, and others have before me, given to it. The Devil is said by Jesus's followers to pervade the whole unbelieving world. If you complain, Mr. Attorney-General, that this is pressing a lawyer too far on a theological question, I shall lay the blame on you, and those who have held your office, for starting this particular subject; and whenever an Attorney-General advances a position he takes the risks attending it. The story of the Devil's fall from Heaven in Revelations, chap. xii. may establish and show an inconsistency in Jesus's religion, but it does not get you nor his followers clear of the silly notion of the two principles, when your canon of Scripture has once advanced what clearly implies that groundless notion.

"The jury are conjured." Since the detection and exposition of that infamous list of jurors, out of which a jury used to be packed for the Crown whenever it was prosecutor, some sort of reformation has taken place in the manner of appointing a jury, so as to leave a better chance of having disinterested men on the jury. Before Hone's trial the scene which used to take place in prosecutions for alledged blasphemy was scandalous and detestable. The legislature take upon themselves to assign a revelation to the Almighty, but as a revelation is a delineation of his character, they assign to him a character of their own choosing; and as they labour to suppress and hide the objections started against it, that character which they have given to the Supreme Being must of course be a bad one, because concealment in this case implies guilt in the concealing party: so that the charge of blasphemy is justly retorted upon the legislature and upon the prosecuting party in this case of R. Carlile, and also in the preceding cases of Houston, the reputed author of *Ecce Homo*, of Williams, who was

Paine's printer of the *Age of Reason*, of Daniel Isaac Eaton, too, and others. The legislative bodies, I repeat, and their accomplices, are the real blaspheming party, who have given, as they testify by their concealing practices, a bad and slanderous character to the Almighty, and whose guilt is aggravated by their endeavours to hinder other men from vindicating him from their foul aspersions.

The jury on all those above-mentioned occasions invariably gave up the character of the Maker of the universe to be traduced and calumniated by

the legislative bodies and their accomplices; and this abandonment of all rectitude and decency was by bad men termed a verdict, i. e. *a vere dictum*, whereby infallibility was attributed to twelve mortal men at the same time that it was denied to the Ancient of Days, the real proprietor of all worlds. If persons, sitting judiciously upon the character of this exalted Being, gave it up thus to be reviled, they ought, at least, to have been Gods whose judgement was to have been thus appealed to; in fact, this sort of appeal of the prosecuting party to twelve mortals was erecting them to something far above the human nature; and these twelve mortals were induced by a gratuity of one or more guineas a piece, a good dinner, with plenty of jovial nectar, at the expence of the country, to consign over the character of the Almighty to reviling and insult, thereby opening a door for a supposititious system of morality,

*"And raised to gods confess even virtue vain."
—Pope.*

"As they value the preservation of good morals." This, as I have shewn, must be merely ironical, these prosecutions having the opposite tendency.

"The peace and good order of society." This is to obtain a submission to tyranny; which submission Jesus in his religion inculcates by his Apostle Peter, 1 Cph. chap. ii. ver. 13: "Submit yourselves to every ordinance of man." And this will account for zeal of the ruling authorities to support Jesus's pretensions:

"Individual and public welfare." This, after what has been shewn, must be all rant.

"The happiness of their fellow-subjects here and hereafter." This can never be promoted by suppressing argument and stifling inquiry.

"Arrest the fatal poison." Here the fair and free investigation and examination of propositions is called poison. Yet, who but the wicked can have any thing to dread from inquiry?

I apprehend, Mr. Shepherd, that you and the self' styled Society for the Suppression of Vice carry on separate prosecutions, but I have classed you both together, because you are both of you aiding, abetting, and assisting in the same design. Of what individuals that Society is composed is not known to me, but as the Bishops of Durham and Rochester are the presidents, I conclude, that many priests of Jesus are among the number, and that, at any

rate, the parsons are the chief instructors in this business. That free inquiry should not generally take place is much their interest, for thereby their "gains would be gone." They would much wish that the ignorance of ancient days, so profitable to parsons, could be brought back; and I send you a verse or two upon a desire expressed in the Gentleman's, or as it ought to be called, from its treating so much of ecclesiastical matters, and expressing the wish of the parsons, the Parson's Magazine, that the level near St. Andrew's church should be filled up.

*"Priests, who through fiats their trade sustain
Wish level Holborn Hill;
And wish the world were flat again
As erst when it stood still." 1*

The self-styled Society for the Suppression of Vice, are zealous to substitute useless or absurd observances as parts of religion, instead of real true morality; and have taken great pains to prevent amusements, and produce a gloom throughout Sunday, the only holiday for many people. There are not less spirits drank on amount of a sabbatical gloom; for harmless cheerfulness is rather a preservative of innocence. I have therefore sent you, Mr. Attorney-General, a song, which I beg you to deliver to the parsons of that Society, and to any other parsons, to help them to keep up their spirits.

1 Joshua, chap. x.

SONG,

To the tune of "Come, bustle, hustle, drink about, and let us merry be," of George Alexander Stevens.

*Since Paul affirms that Heaven has chose
The thoughtless foolish things, 1
And bless'd with Paradise all those
For paying priests and kings: 2
Then a preaching we will go, will go, will go,
Then a preaching we will go.*

*Fanatic herds, as if with strings
At their nose, by priests are led;
And know not that the knavish things
Made that choice in God's stead.
Then a preaching, &c.*

*As crowds believe the heavens reject
The prying, shrewd, and wise,
No fear lest he our fraud detect,*

*Whose faith has closed his eyes.
Then a preaching, &c.*

*Now Sion is rubied, gilt, and pearl'd,
As the seat of blockheads' bliss;
Our flocks may take that future world,
Give us the joys of this.
Then a preaching, &c.*

1 Cor. chap. i. ver. 27.

2 Rom. chap. xiii. ver. 4.

*Our muttons, gulled and ignorant,
Dare never close inquire,
Lest if they disbelieve our cant,
They fall to Hell's hot fire.
Then a preaching, &c.*

*Thus dolts suck in through panic dread
The Gospel's milk 1 and crumbs,
And with all nonsense fill their heads,
Lest Hell should scorch their bums.
Then a preaching, &c.*

March 2, 1810. PHILALETES.

*1 1 Cor. chap. iii. ver. 2.
and Heb. chap. i. ver. 13.*

LETTER TO MR. CARLILE,

London, 28th February, 1819.

Sir,

You are about to be placed in a situation, and to perform a part, which will interweave your name in the page of history:—not, however, in that species of history which records the wars, bloodshed, or misery of nations, as opposed to one another; but in that which exhibits the cruelties of governments towards individuals among their own subjects, who seeing, or thinking they see, their fellow men suffering afflictions through the ignorance, prejudice, and misrule of their governments, endeavour to remove the causes of such oppressions and misery, by disclosing them, and setting their fellow-men to think for themselves. You have had the virtue and intrepidity to engage in this honourable career, and are, consequently, a prominent object in the public eye. Every friend to the progress of knowledge, reason, and truth, as well as of sincere humanity, is warmly interested in the nature and result of those severe proceedings instituted against you. They devoutly hope that your character as a man and a neighbour will afford no handle for disparagement of you and your conduct; that your moral principles are good, and your integrity unquestioned; that your deportment in the relations of private and domestic life is amiable: and that conscious of the purity of your motives, you will not shrink before the threats of your adversaries; but, on the contrary, display that manly firmness of courage which will enable you to encounter and defeat the numerical, though not formidable, superiority of force to be arrayed against you. If, however, contrary to our hopes and expectations, the abettors of persecution in church and state should, by their arts and machinations, succeed in obtaining a verdict for the persecutor, be you assured that the respect, sympathy, and support of every enlightened, liberal, and benevolent mind, will follow you, wherever your oppressors may convey your person. Yet, I cannot but cherish anticipations of a very different termination of these proceedings, engendered as they are between religious bigotry and political

folly, when submitted by both sides to a jury of our countrymen. I trust that impartial justice will guide their decision.

As a friend to the universal freedom of mankind, civil and religious, I take leave to address you, for the purpose of contributing my sincere congratulations on the honours that await you, and the fine opportunity presented to you of benefiting mankind. I regret that the nature of my situation constrains me to conceal my name. To disclose it would, in all probability, prove my ruin in worldly circumstances, and thus both my present and future usefulness in this very cause be destroyed. I know many individuals, eminent for public and private virtue, who entertain the same sentiments as myself, who, by the prejudices so assiduously kept up, are equally obliged to be silent.

I have felt desirous, too, of sending you a few unconnected thoughts which have occurred to me on your case. It is very likely that they are quite common, and may have been much better expressed by others; yet, nevertheless, I shall state them.

I can easily suppose, that, even if you had an intention to employ counsel in your defence, you would find some difficulty, in the present servility of the bar to the powers that be, to obtain any assistance. But you require none, and you will be your own best advocate. I am not a lawyer, and therefore am I neither deeply read in musty statutes, nor skilled in legal subtleties. I apprehend, however, that there is not a law in the statute book forbidding theological controversy. The crime with which you are charged is called a *libel*. Now, what a libel is I do not know, nor can any body tell me; yet you are doubtless pretty well aware, that your prosecutors will, in a strain of inflated declamation and bombast, describe this libel as a thing of the most atrocious and diabolical nature and tendency. Your mode of defence against this attack is obvious. Since the question at issue between you and your accusers is not one of law, but of fact, your object is to get behind their ambuscade of words, and beat down their phillippics by that irresistible weapon, common sense, wielded by an honest man.

It has always appeared to my understanding that the most powerful argument that can be used with well-meaning people who assisted in, or approve of, prosecutions to support the ascendancy of their religion, is, that which shews such prosecutions to have a *directly opposite tendency*. Persecution is the very scandal of religion: it confesses weakness at once,

and is a complete admission that the origin, doctrines, and progress of that religion cannot bear investigation.

It proves that the professors of and believers in it, are not themselves convinced of its truth and divine nature. But a system of things being established, of which these persons form apart, in which they live, move, and have their being, *they wish it to be true*. They themselves take it for granted, and live very comfortably under that system of machinery of which it is a wheel, and so their interest and indolence combine in prompting them to wish every one else to have the same belief. There are people, however, who cannot, and will not, believe what appears to their judgements to be false; but, should they go farther than this, and consciously wishing their fellow-creatures to perceive the truth, endeavour to shew by writings on what grounds they cannot, and others ought not, to believe in falsehood and impositions, then, in default of counter argument, or refutation by the same instrument of reason, courts of law and armed authority are called on, *to compel* those unbelievers either to believe, and of course such belief would be against their consciences, or to hold their tongues. In former ages, shooting, stabbing, burning, and flaying alive, were the means used for propagating religion for the good of men's souls; now they are imprisonment, fine, pillory: but these remnants of barbarity are also fast sinking into disgrace and disuse, and I cannot help thinking that you are destined to give the finishing blow, in this country at least, to the cruelties of bigotry.

Now, as inspiration or direct revelation from Heaven is not believed even by Christians (at least the more rational) of this day, though in the early and middle ages of Christianity priests and monks would have sworn that God communicated with them every day, let me suggest that, in the course of your defence, you ask the Jury trying your guilt or innocence as a *libeller* of that religion, whether *they* believe it to be founded on *truth*? And since it would be to insult them, you can add, to suppose they should profess belief of a subject doubtless considered by them of the highest importance to their present and future welfare, without having thoroughly examined it, again ask—whether in their hearts and consciences they think that any sophistical reasoning, which every thing contrary to it they must deem so, could shake their principles thus established on the basis of demonstration? If so established, what can hurt it—what can be a libel on it? Unless their religion be capable of *demonstration*, it is at best but *doubtful*, and may,

therefore, be at least *susceptible* of confutation. If, in spite of the objections and attacks to which it has been exposed, it can be shewn to be the true religion after all, such discussion, instead of doing harm, must do good, inasmuch as it fixes the religion on a firmer basis. On a subject where so many men of the most acute intellect and most respectable character differ in opinion, you, as a humble inquirer after truth, may be allowed to have yours. Speculative opinions on religion, you can tell the jury, are nothing: whether you are a Roman Catholic, a Protestant, a Mohammedan, a worshipper of Vishnu, or a Free Thinker, or none of all these, is of no consequence to mankind, either governing or governed—It is a matter between you and your Maker only. All that governments can have to do with individuals, is their conduct as members of the state towards their neighbours. Had you been charged with any acts of disturbance, with the violation of any of the laws for the protection of persons and property, then it would have been intelligible; you might have been a fit object for trial, and, if found guilty, of punishment. Not one of the books which you have published have the slightest tendency to promote disorder, but, on the contrary do they profess and are calculated by a diffusion of their principles to extend and consolidate universal peace, virtue, happiness, and prosperity.

If, then, the gentlemen of the Jury's religion be founded on what they have satisfied their understanding to be *truth*, nothing can injure it; since, if it really come from God, to imagine that any writings, whether argumentative or satirical, could maintain a doubtful contest with books said to contain a revelation of the divine will, is actually to raise the author of such writings, and you their publisher, to a level with God himself! or, rather, to degrade that Almighty, wise, and good Being, your Creator, to a level with you, the creature. Hence it follows, that persecution may destroy, but never can support any religion.

You cannot have a better ground-work for your defence than the theological works of Paine, which, indeed, settle the question about the inspiration of the scriptures and the divinity of Christ. On the subject of religion generally there is a book which every lover of truth must regret is not so well known as it will infallibly be in no long time—I allude to a work entitled "Principles of Morality," by George Ensor, Esq. It displays the most extensive research and erudition, combined with good sense and an amiable disposition; the subject is pursued with much perspicuity of order, and expressed in an easy, neat, appropriate style. The book forms a very

useful companion to Hume's ingenious and philosophical Essays on the Natural History of Religion.

I have now to advert to what you will doubtless consider the most valuable part of this communication. At the period of the late Mr. Eaton's cruel and abominable treatment under the chief persecutorship of Lord Ellenborough and his high priest, Sir Vicary Gibbs, a letter appeared in the Morning Chronicle on the subject of that unfortunate gentleman's unmerited punishment. It purported to be written by one who believed in the Christian religion; but it evinced sentiments so liberal, reasoning so just and forcible; it placed the right of conscience, even as good policy, in so striking a point of view; arguing the subject in such good temper, and with such conciseness, as to appear to me a masterpiece of its kind, and a standard to which every member of the Christian church ought to be referred. I preserved a copy of it at the time, and now send you one transcribed, believing that it may be useful to you, or that it may at least be interesting to you in the perusal.

The public mind has, of late years, been making rapid progress towards a true knowledge of its rights. Priestcraft and bigotry must and will be destroyed. Once trampled upon by man in the energy of his wrath, these monsters can never again rear their Gorgon heads. Like the Apollo represented by the Grecian sculptor, in the act of destroying the Pythian serpent, man will then stand as God created him, the impress of his own image, erect, free, noble, and grand. We have seen the glorious result of the attempt to crush, not Hone, but in him the spirit of a free press, and it is not permitted us to doubt that a similar triumph and reward awaits you.

I am,

Your sincere (though anonymous) friend,
A FELLOW-INQUIRER AFTER TRUTH.

(Copy.)

To the Editor of the Morning Chronicle.

Sir,

I was one of those who saw Mr. Eaton stand in the pillory for what has been called an attempt to overturn the religion of his country. The manner in which the spectators behaved during the execution of this severe punishment, was, in my opinion, highly creditable to the liberality of the

age. I think I may venture to say, there was hardly an individual present who did not sympathise with the unfortunate man; he was cheered by numbers during the whole time of the punishment; and many efforts were made to convey various kinds of refreshments to him.

As one of those who wish well to the interests of the Christian religion, I own I was shocked upon this occasion. I have always conceived this religion to be perfectly independent of the arm of authority for its support, and to require only to be heard and examined to bear down every species of opposition. I cannot but consider that it has made its way against power, learning, and philosophy, united to destroy it; nor can I refuse to draw from this the deduction, that it will equally withstand all the efforts of abuse, sophistry, and calumny. When I see any set of men resort to punishment, instead of argument, in its defence, I can with difficulty conceive they are serious in the belief of its doctrines, for the smallest reflection might convince them, that such a course is the most effectual method they could take to lower its estimation, and to cover it with discredit. It betrays that diffidence and fear for the result which a man thoroughly impressed with the truth of the Christian doctrines would surely not be the most likely to entertain. I cannot bring myself, therefore, to believe, that those who manifest a zeal to crush the enemies of Christianity by the arm of the law, are themselves acquainted with that religion. I imagine them, on the contrary, to be men whose time and attention have been completely ingrossed by secular affairs, and who believe the Christian religion as they would believe the Mohammedan, merely because their fathers believed it before them.

Let those cruel persecutors reflect for a moment on the injury they are thus doing to the very cause they are pretending to support. Let them consider that religion can be defended only by argument, or by force; and that it cannot be defended by the union of both; for it is in vain to say, it may be defended by argument, when the reasonings on one side only can be heard aloud, while those on the other draw down on the head of the user of them pillory and imprisonment. It is certainly a very unequal conflict when one of the combatants may make use of an argument or a halter at his discretion. It is like a battle between a pugilist and one armed with a stiletto, which, though he may not use at first, he knows he can use if hard pushed. Such defenders of Christianity would do well to remember, that the means they are resorting to are those which so successfully promoted the cause of

infidelity in France. Had the same pains been bestowed in refuting the productions of Rousseau, Diderot, and Voltaire, which were employed in burning their books and punishing the authors, France and the whole of Europe might, at this day, have exhibited very different spectacle.

The progress of liberal opinion has been very rapid, indeed, of late years; and though Judges and Attorney-Generals, whose daily pursuits, certainly so unfavourable to liberal and comprehensive reasonings, are generally among the last persons to shake off antiquated prejudices, yet they too, however slowly, will, unquestionably, at last, be borne down by the tide of public opinion.

*** END OF THE PROJECT GUTENBERG EBOOK A LETTER TO SIR
SAMUEL SHEPHERD, KNT., HIS MAJESTY'S ATTORNEY GENERAL

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